

STATE OF NEW YORK

2643--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 21, 2025

Introduced by M. of A. SOLAGES, KAY -- Multi-Sponsored by -- M. of A. DAVILA -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to permitting certain licensed athletic trainers to practice in New York state if they are licensed to practice in another state, territory or country

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 8356 of the education law is amended by adding a
2 new subdivision 4 to read as follows:

3 4. (a) Any person who is licensed or title-protected as an athletic
4 trainer, or as an athletic therapist credentialed by a foreign govern-
5 ment and in good standing in another state, territory, or country, and
6 who has a written agreement to provide athletic training services to
7 athletes and team personnel of a United States sports team recognized by
8 the United States Olympic and Paralympic Committees or an out-of-state
9 secondary school, an institution of postsecondary education, a profes-
10 sional or amateur athletic organization sports team, or a performing
11 arts troupe, may provide athletic training services to such athletes and
12 team personnel at a discrete sanctioned team sporting event or perform-
13 ance at a secondary school, institution of postsecondary education,
14 professional athletic organization, amateur athletic organization, non-
15 profit athletic organization, dance organization, military academy or
16 facility of the United States, fire training program or academy, or
17 police training school or academy in this state, provided such services
18 are provided only to such athletes and team personnel at such discrete
19 sanctioned team sporting event or performance. Any such athletic train-
20 ing services shall be provided only five days before through three days
21 after each such discrete sanctioned team sporting event or traveling
22 performance.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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(b) Any person practicing as an athletic trainer in this state pursuant to this subdivision shall be subject to the personal and subject matter jurisdiction and disciplinary and regulatory authority of the board of regents as if such person is a licensee and as if the exemption pursuant to this subdivision is a license. Such individual shall comply with applicable provisions of the rules of the board of regents, and the regulations of the commissioner, relating to professional misconduct, disciplinary proceedings and penalties for professional misconduct.

§ 2. This act shall take effect on the same date and in the same manner as chapter 733 of the laws of 2023, takes effect. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.